

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2015-1719, 2015-1721, 2017-7040 & 2017-7119

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
ADDICTION COUNSELING IN THE STATE OF COLORADO AND THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF HARL HARGETT, LICENSE
NOS. LAC 57, LPC NO. 1566,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners and the State Board of Licensed Professional Counselors
(together, "Boards") and Harl Hargett ("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Licensed Addiction Counselor ("LAC") and licensed to practice as a Professional Counselor ("LPC") the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Nos. 2015-1719, 2015-1721, 2017-7040 and 2017-7119. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around May 2010, Respondent began counseling client DD.
 - b. Respondent maintained a dual relationship by providing individual counseling to DD and couples counseling to DD and PD.

- c. Respondent's mandatory disclosure form for DD was inadequate in that it did not include Respondent's name, education, or credentials.
- d. Respondent failed to maintain a mandatory disclosure form for PD.
- e. Respondent misrepresented his credentials by claiming he obtained a Bachelor of Arts degree in Theology.
- f. On July 19, 2016, Respondent entered into a Stipulation and Final Agency Order with the Boards in Case Nos. 2015-1719 and 2015-1721 ("2016 Order"), pursuant to which Respondent agreed to two (2) years of probation and continuing education.
- g. On or around May 31, 2017, Respondent conducted an intake assessment of LC and had LC sign client forms; however Respondent failed to recognize LC was a client.
- h. On or around October 2017, Respondent disclosed confidential information obtained in a family therapy session to a third party.
- i. Respondent's mandatory disclosure statement has been and continues to be substandard and out of compliance.
- j. Respondent violated the 2016 Order by engaging in additional prohibited activities.
- k. This Order supersedes the 2016 Order and also includes Case Nos. 2017-7040 and 2017-7119.

5. By virtue of the facts admitted in paragraph 4 above, the Boards find that Respondent violated §§12-43-214 and 12-43-222(1)(b), (g)(I), (i), and (p), C.R.S., which state:

§12-43-214. Mandatory disclosure of information to clients.

(1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214.

6. By virtue of the admissions in paragraphs 4 and 5, Respondent is subject to the following disciplinary sanctions that the Boards believe are necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's licenses to practice addition and professional counseling in the State of Colorado are hereby placed on probation for an additional two (2) years commencing from the effective date of this Order, or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LAC and LPC in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. If the Boards have not already approved Respondent's practice monitor, within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed practice monitors for the Boards' approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. Respondent must have a practice monitor approved by the Boards within two (2) months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved.

13. After the Boards' written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for practice monitoring is executed. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a

provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Boards determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Boards determine, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Boards that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, twice each month. Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing addiction and professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

17. The practice monitor shall submit a written report to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Boards, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Boards' concerns. The Boards will give the practice monitor 30 days of notice prior to requiring the practice monitor's attendance at the Board meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of addiction and professional counseling.

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards' judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

21. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Boards in accordance with this Order.

CONTINUING EDUCATION

22. During the period of probation, Respondent must successfully complete at least twenty (20) hours of Board-approved professional continuing education ("CE") courses each year in the areas of dual relationships, boundaries, documentation, and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

23. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited

and that he practices in accordance with the generally accepted standards of practice.

24. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

26. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

27. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

28. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

29. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

31. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

32. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any

provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

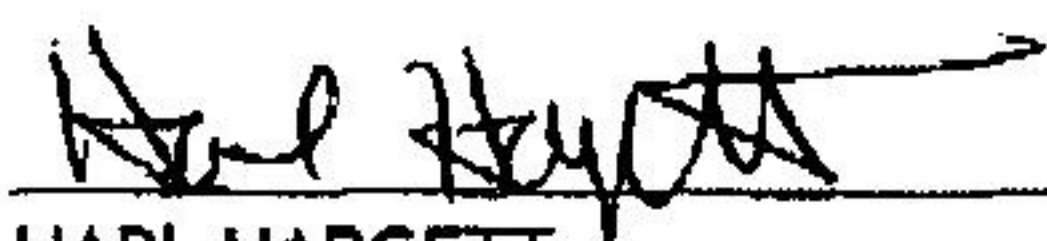
33. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

34. This Order shall be admissible as evidence at any hearing held before the Board.

35. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



HARL HARGETT
LAC 57
LPC 1566

AGREED TO AND ORDERED BY:

STATE BOARD OF ADDICTION COUNSELOR
EXAMINERS AND STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 31st day of

July, 2018.